

ASSOCIATION OF AUSTRALASIAN ACOUSTICAL CONSULTANTS LTD

CONSTITUTION

ACN 678 114 997 / ABN 31 678 114 997

A Public company limited by guarantee

This constitution adopted on 12 June 2024

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A. GENERAL

1. Name of the Company

- 1.1 The name of the Company is Association of Australasian Acoustical Consultants Ltd.

2. Purpose

- 2.1 The Purpose of the Company is to promote, support and advance the practice and profession of acoustical consulting.
- 2.2 The Company pursues the Purpose through a range of activities and services that may include:
- a) operating as an industry peak body that represents businesses involved in delivering acoustic consulting services to the Australian and New Zealand communities;
 - b) supporting and facilitating education and distance learning with respect to the field of acoustics and acoustic consulting;
 - c) informing the public of the role and responsibilities of acoustical consultants and the services which such consultants provide;
 - d) establishing and encouraging adherence to standards of professional behaviour and conduct for acoustical consultants;
 - e) providing members with a forum for exchange of information on matters relating to acoustics and acoustic consulting;
 - f) cooperating and liaising with other associations and bodies with respect to matters of mutual acoustical interest;
 - g) informing and protecting the community by discouraging, clarifying, negating or questioning unclear inaccurate or unproven representations of an acoustical nature;
 - h) advocating on behalf of the profession to key stakeholders including government, policy makers and the community; and
 - i) encouraging amongst the Members a high professional standard in all matters of practice including the calibration and use of instruments, measuring techniques, data processing and predictive modelling and report documentation employed by acoustical consultants.

3. Type of Company

- 3.1 The Company is a not-for-profit public company limited by guarantee.
- 3.2 The Company must not distribute any income or assets directly or indirectly to its Members.
- 3.3 Clause 3.2 does not prevent payment in good faith for:
- a) reasonable and proper remuneration to any employee of the Company;

- b) reasonable and proper amounts to any Member in return for any goods or services they provide to the Company;
 - c) reasonable and proper rent for premises leased by any Member to the Company;
 - d) interest at a rate not exceeding current bank interest rates for money lent to the Company;
 - e) reimbursement in good faith of out-of-pocket expenses incurred on behalf of the Company;
 - f) any other sums lawfully payable under this constitution; and
 - g) for any other bona fide reason for fulfilling its Purpose.
- 3.4 The replaceable rules set out in the Corporations Act do not apply to the Company.
- 3.5 This constitution comprises a contract between:
- a) the Company and each Member;
 - b) the Company and each Director;
 - c) the Company and the Secretary; and
 - d) a Member and each other Member.
- 3.6 Each Member must contribute an amount not more than \$1.00 to the property of the Company if the Company is wound up while the Member is a Member, or within 12 months after they stop being a Member, and this contribution is required to pay for the:
- a) debts and liabilities of the Company that exceed the Company's assets incurred before the Member stopped being a Member, and
 - b) costs of winding up.

4. Powers of the Company

- 4.1 The Company has the following powers:
- a) the powers of an individual, and
 - b) all the powers of a company limited by guarantee under the Corporations Act.
- 4.2 Even though the Corporations Act provides extensive powers to the Company, it may use its powers only to carry out its purpose.

5. Definitions

- 5.1 In this constitution, capitalised terms have the following meanings:

Branch Account means refer to By-Laws for definition.

Business Day means a day on which banks are open for business excluding Saturdays, Sundays and public holidays in the place where the Company's registered office is located;

Business Entity means a sole trader or legal entity (including but not limited to a statutory corporation, corporation, incorporated association, partnership, trust or other structure acceptable to the Board);

By-laws mean the rules a) means the rules and regulations of the Company made by the Board in accordance with clause 32;

Chair means the Director holding the office of Chair in accordance with clause 28;

Code of Ethics means the code of ethics applicable to Members, amended as a By-Law by the Board from time to time.

Corporate Group means a group of two or more related bodies corporate. Two bodies corporate are related if any of the following apply:

- a) One is a holding company of the other,
- b) One is the subsidiary of the other,
- c) One is the subsidiary of a holding company of the other,
- d) The bodies corporate act in concert or under the same brand, regardless of their respective country or countries of operations;

Corporations Act means the Corporations Act 2001 (Cth);

Director means an individual appointed or elected as Director of the Company;

Financial Year means the Company's year, being from 1 July to 30 June, unless the directors pass a resolution to change the financial year.

General Meeting means a duly constituted meeting of the Members and includes an Annual General Meeting;

Member means a Member (Business Entity) admitted to membership of the Company;

Representative means the individual appointed by a Member to represent the Member in accordance with clause 9;

Secretary means the individual appointed as the Company's secretary under clause 43;

Special Resolution means resolution of which not less than 21 days written notice specifying the intention to propose the resolution as a Special Resolution at a General Meeting has been duly given, requiring at least 75% of the votes cast by Members entitled to vote on the resolution to pass.

6. Interpretation

6.1 In this constitution:

- a) mandatory provisions of the Corporations Act override any clause in this constitution which is inconsistent with that Act;
- b) a word or expression that is defined or used in the Corporations Act and covering the same subject has the same meaning as in this constitution;
- c) reference to an act includes every amendment, re-enactment, or replacement of that act and any subordinate legislation made under that act such as regulations;
- d) a reference to a clause or sub-clause is to a clause or sub-clause of this constitution;
- e) where a word or phrase is defined, its other grammatical forms or parts of speech have corresponding meaning;
- f) reference to a person is a reference to an individual, company, any other body corporate, partnership, joint venture, association or other body whether or not incorporated;
- g) the words 'writing' and 'written' include any mode of representing or reproducing, including electronically, words, figures, drawings or symbols in a visible or communicable form;
- h) headings are for convenience only and do not affect the interpretation of this constitution;
- i) the words 'including', 'for example', or similar expressions do not limit the inclusions or examples;
- j) a gender includes all genders;
- k) singular includes plural and vice versa.

B. MEMBERSHIP

7. Classes and criteria of membership

- 7.1 Membership of the Company is open to any Business Entity engaged in the practice of consulting in acoustics and/or vibration and that:
 - a) operates from a place of business in Australia or New Zealand or as otherwise approved by the Board; and
 - b) can satisfy the Board of its ongoing economic and professional viability and expertise by having been in practice for the previous two years or by providing such other evidence as is reasonably required by the Board and satisfies any further criteria that may be prescribed by the Board and set out in the By-laws.
- 7.2 The Board may provide for categories of Members on such terms and conditions as the Board determines, provided that the rights of Members are in accordance with clause 8.1.
- 7.3 A Corporate Group may have no more than one Member within the Corporate Group. The Corporate Group may have more than one Branch Account.

- 7.4 If a Member becomes part of the same Corporate Group as another Member, the Board will decide (in consultation with the Members concerned) which of them will cease to be a Member.
- 7.5 The date of cessation of membership of the Member under clause 7.4 will be determined by the Board.

8. Rights and obligations of Members

- 8.1 Members have the following rights:
- a) to receive notices of and to attend General Meetings;
 - b) to nominate candidates for election as Directors;
 - c) to vote at General Meetings and on resolutions put to the membership and on the election of Directors.
- 8.2 The Board may extend benefits and privileges of membership that may differ between classes and categories of membership and within classes and categories of membership, but no such benefits or privileges shall affect the rights of Members in this clause 8.
- 8.3 A Member who has not paid any fees payable under clause 10 by the due date will not be entitled to exercise their rights while the fee remains unpaid.
- 8.4 The rights of a Member are not transferrable.
- 8.5 The rights of Members of a particular class are not to be taken as being varied by the admission of more Members to that class or the addition or deletion of other classes of membership or categories of membership within a class.
- 8.6 Members shall conduct themselves in accordance with:
- a) this constitution;
 - b) any By-Laws; and
 - c) the Code of Ethics.
- 8.7 A Member must submit an annual return confirming that they satisfy the membership criteria in clause 7.1, clause 7.3 and any relevant By-Laws. Failure to submit an annual return may result in termination of membership in accordance with clause 13.1f).

9. Representatives of Members

- 9.1 Each Member will nominate to the Secretary at the time of application for membership the name of one individual who will represent that Member at General Meetings and in the case of a Member, may vote on behalf of that Member (Representative).
- 9.2 A Member may by notice to the Secretary change its Representative.
- 9.3 The Secretary will keep a register of Representatives.
- 9.4 The Representative must meet the requirements for being a Representative as detailed in the By-laws.

10. Application for Membership

- 10.1 An application for membership must be in a form prescribed by the Board.
- 10.2 The Board may approve or reject an application of membership.
- 10.3 The Board is not required to give a reason for the rejection of any application for membership.
- 10.4 The Board may delegate the consideration and determination of any membership application.
- 10.5 Once made, written notice of the Board's decision shall be sent to the applicant.
- 10.6 The acceptance of an applicant to be a Member is subject to payment of any applicable fees and is void if payment is not made in accordance with this constitution or the By-Laws.
- 10.7 If the applicant is not admitted to membership, then any moneys paid by them for membership must be returned to them in full.
- 10.8 Subject to clause 10.6 an applicant becomes a Member and is entitled to exercise the rights and privileges of that membership when their name is entered in the Register.

11. Membership fees

- 11.1 The Board may set any joining fee and membership fees and may determine different fees:
 - a) for different classes or categories of membership;
 - b) within classes or categories of membership; or
 - c) for different Members.
- 11.2 The Board may in its discretion waive or vary the amount of any membership fee.
- 11.3 If any membership fee remains unpaid for a period of 1 month after it becomes due, written notice will be given to the Member of that fact. If any fee remains unpaid more than 1 month after the date of the notice, the Member's membership is terminated unless the Board resolves otherwise.

12. Register of Members

- 12.1 An applicant becomes a Member when they are entered on the register of Members.
- 12.2 A Member must promptly notify the Board of any change to their details as recorded in the register of Members, including their address and electronic contact address.

13. Ceasing to be a Member

- 13.1 A Member ceases to be a Member:
 - a) if they resign;

- b) if in the case of an individual, they die;
 - c) if in the case of a body corporate, they are wound up or dissolved;
 - d) if their membership is terminated under clause 11.3;
 - e) if they cease to be eligible to be a Member, on the date that the Board resolves to terminate the membership; or
 - f) if the Member fails to provide any information required by the Board as part of the renewal process, unless the Board resolves otherwise.
- 13.2 The Board may waive any grounds for cessation of membership or any breach of this constitution by a Member and readmit any person as a Member as it thinks fit.
- 13.3 Upon ceasing to be a Member, the Member's name will be removed from the register of Members.
- 13.4 Any Member ceasing to be a Member:
- a) remains liable for any money owing by that Member to the Company and, if the Company is wound up within one year of the date the Member ceases to be a Member, the guarantee under clause 3.6;
 - b) shall not be entitled to any refund, in full or part, of any membership fees paid; and
 - c) shall not be readmitted as a Member until any unpaid moneys outstanding at the time they ceased to be a Member are paid including any interest or other charges levied on any outstanding moneys.

14. Suspension or expulsion of a Member

- 14.1 Without limiting any other way a Member may cease to be a Member, the Board may suspend or expel a Member from the Company if the Board considers that the Member:
- a) has failed to comply with this constitution or the By-Laws;
 - b) has failed to comply with the Code of Ethics; or
 - c) has acted in a manner prejudicial to the interests of the Company.
- 14.2 At least 21 days before the Board takes any disciplinary action, the Secretary must notify the Member in writing that:
- a) the Board is considering disciplinary action which shall be specified, and the date place and time that such proposed disciplinary action will be considered by the Board;
 - b) the reason for such proposed disciplinary action; and
 - c) that the Member may explain or defend themselves by:
 - i) sending the Board a written explanation; and/or
 - ii) speaking at a meeting of the Board convened for that purpose (but the Member may not be present during

Board deliberations or voting on the resolution unless the Board allows).

- d) If the Member subject to this clause 14 is a Director, the Director may not be present during any Board deliberations about, or to vote on, the disciplinary actions the Board may take.

14.3 After considering any explanation, the Board may:

- a) take no further action;
- b) warn the Member;
- c) suspend the Member's rights as a Member for a period of no more than 12 months;
- d) expel the Member;
- e) refer the decision to an unbiased, independent person on the condition that the person can only make a decision that the Board could have made; or
- f) require the matter to be determined at a General Meeting.

14.4 The Secretary must give written notice to the Member of the decision promptly.

14.5 There will be no liability for any loss or injury suffered by the Member as a result of any decision made in good faith under this clause 14.

14.6 Subject to clause 14.7, a Member may request the Board to reconsider any action it takes under clause 14.3.

14.7 A Member to be expelled in accordance with clause 14.3d);

- a) may appeal against that resolution. Such an appeal must be made in writing and must be received within 10 Business Days after the date of the notice of expulsion or such longer time as the Board may decide in their complete discretion (Appeal Notice).
- b) If an Appeal Notice is received by the Board within the required timeframe:
 - i) the Board must ensure that (within two months after receipt of the Appeal Notice) a Special Resolution to overturn the expulsion is considered by the Members at a General Meeting to consider this resolution only;
 - ii) the Member must be given a reasonable opportunity to make representations in relation to the decision of the Board to expel that Member (which may include making representations in writing prior to or at the General Meeting or both, in accordance with the policies and procedures of the Company in relation to such matters); and
 - iii) the Member's membership will be taken to be suspended as at the date of the notice of expulsion, pending the outcome of the General Meeting.

- c) If the resolution to expel the Member is not overturned by the Members at the General Meeting, the Member's expulsion takes effect from the date of the notice of expulsion. If the Members overturn the expulsion then the Member's membership continues in full effect, with the suspension lifted from the date of the General Meeting.

C. GENERAL MEETINGS

15. Calling a General Meeting

- 15.1 The Board may call a General Meeting.
- 15.2 If Members with at least 5% of the votes that may be cast at a General Meeting make a written request to the Company for a General Meeting to be held, the Board must:
 - a) within 21 days of the Members' request, give all Members notice of a General Meeting, and
 - b) hold the General Meeting within 2 months of the Members' request.
- 15.3 A General Meeting, called the Annual General Meeting, must be held:
 - a) within 18 months after registration of the Company, and
 - b) after the first Annual General Meeting, at least once in every calendar year and within 5 months after the end of the Company's Financial Year.
- 15.4 The Company may hold a General Meeting at one or more venues, or wholly or partly online or virtually, using any technology that gives the Members a reasonable opportunity to participate, including to hear and be heard.
- 15.5 Anyone using this technology is taken to be present in person at the General Meeting.
- 15.6 A virtual General Meeting is deemed to have been held at the Company's registered office.
- 15.7 A General Meeting that is partly held using technology, and partly in person, is deemed to have been held at the registered office of the Company.
- 15.8 A General Meeting must be held:
 - a) at a reasonable time; and
 - b) if the meeting is being held at a physical location or locations and any of the Members are entitled to physically attend the meeting - at a reasonable location or locations; and
 - c) if virtual meeting technology is used in holding the meeting- the technology gives the persons entitled to attend the meeting, as a whole, a reasonable opportunity to participate without being physically present in the same place.

16. Notice of a General Meeting

- 16.1 Notice of a General Meeting must be given to:
 - a) each Member;
 - b) each Director; and
 - c) the auditor, if any.
- 16.2 Notice of a General Meeting must include:
 - a) the time, date and place of the General Meeting or the technology, or both, that will be used to facilitate the General Meeting;
 - b) the general nature of the General Meeting's business;
 - c) if applicable, that a Special Resolution is to be proposed and the words of the proposed resolution;
 - d) a statement that Members have the right to appoint a proxy.
- 16.3 Notice of a General Meeting must be provided in writing at least 21 days before the meeting.
- 16.4 Notice of a General Meeting may be provided less than 21 days before the meeting if:
 - a) for an Annual General Meeting, all the Members entitled to attend and vote at the Annual General Meeting agree beforehand; or
 - b) for any other General Meeting, Members with at least 95% of the votes that may be cast at the meeting agree beforehand.
- 16.5 Notice of a General Meeting cannot be provided less than 21 days before the meeting if a resolution will be moved to:
 - a) remove a Director
 - b) appoint a Director in order to replace a Director who was removed, or
 - c) remove an auditor.
- 16.6 The accidental failure to give notice of any General Meeting to, or the non-receipt of notice of a General Meeting by, any Member entitled to receive notice will not invalidate the proceedings at or any resolution passed at the General Meeting.
- 16.7 A Member's attendance at a General Meeting waives any objection that that Member may have to a failure to give notice, or the giving of a defective notice, of the General Meeting unless the Member at the beginning of the General Meeting objects to the holding of the General Meeting.

17. Quorum at a General Meeting

- 17.1 A quorum for a General Meeting is 12 Members, present in person, by proxy or by Representative for the whole meeting.
- 17.2 If a quorum is not present within 30 minutes after the time appointed for a General Meeting:

- a) if convened by or on requisition of, Members is dissolved; and
- b) in any other case stands adjourned to such other day, time and place as the Board appoints by notice to the Members and others entitled to notice of the meeting.

18. Chair of a General Meeting

- 18.1 Usually, the Chair will preside as chairperson of a General Meeting.
- 18.2 If there is no Chair, or the Chair is absent from a General Meeting, or is unable or not willing to act as chair of the meeting or of part of the meeting, then the Vice Chair (if there is one) will act as chairperson of that meeting or part of it until such time as the Chair joins the General Meeting or can resume the role of chair (as applicable).
- 18.3 If there is no Chair and no Vice Chair or if the Vice Chair is absent from a General Meeting, or is unable or not willing to act as chairperson of the meeting or of part of the meeting, then the Directors present may elect one of their number present to be chairperson of that meeting or part of it until such time as the Chair or Vice Chair joins the General Meeting or can resume the role of chairperson.
- 18.4 If there are no Directors present at the General Meeting or the Directors are unable or not willing to act as chairperson of the meeting or of part of the meeting, then the Members present may elect a person present to be chairperson of that meeting or part of it until such time as the Chair or Vice Chair joins the General Meeting or can resume the role of chairperson (as applicable).
- 18.5 The chairperson of a General Meeting is responsible for the conduct of the meeting. Any question arising at a General Meeting relating to the order of business, procedure or conduct of the meeting must be referred to the chairperson whose decision is final.
- 18.6 The chairperson of a General Meeting may at any time they consider it necessary or desirable for the proper and orderly conduct of the meeting:
 - a) impose a limit on the time that a person may speak on a motion or other item of business, question, motion or resolution being considered by the meeting;
 - b) terminate debate or discussion; and
 - c) adopt any procedures for casting or recording votes at the meeting whether on a show of hands, on the voices or a poll.
- 18.7 The chairperson may at any time during the course of a General Meeting, and must if so directed by the meeting, adjourn the meeting from time to time and from place to place, but no business may be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.

- 18.8 When a General Meeting is adjourned for 30 days or more, notice of the adjourned meeting must be given as in the case of an original meeting.

19. Decisions at a General Meeting

- 19.1 Each Member entitled to vote has one vote. The vote may be exercised in person, by proxy or by the Member's Representative.
- 19.2 An ordinary resolution is passed if the number of votes cast in favour of that resolution is greater than one half of the total number of votes cast.
- 19.3 Unless the Corporations Act or this constitution requires a meeting to be held, the Board may put a resolution to the Members to be passed as a written resolution (a circular resolution) without a General Meeting being held.
- 19.4 A circular resolution is passed if all the Members entitled to vote on the resolution sign or agree to the circular resolution.
- 19.5 Members may sign:
- a) a single document setting out the circular resolution and containing a statement that they agree to the resolution, or
 - b) separate copies of that document, as long as the wording is the same in each copy.
- 19.6 The Company may send a circular resolution by email to Members and Members may agree by sending a reply email to that effect, including the text of the resolution in their reply.

20. Methods of voting at a General Meeting

- 20.1 A resolution put to the vote of a General Meeting shall be decided on a show of hands unless a poll is required under this constitution or the Corporations Act, or demanded by:
- a) the chairperson of the meeting;
 - b) at least 5 Members entitled to vote on the resolution; or
 - c) Members with at least 5% of the votes that may be cast on the resolution on a poll.
- 20.2 Proxies shall not be counted on a vote by a show of hands.
- 20.3 A proxy holder does not need to be a Member.
- 20.4 A proxy appointment may specify the way the proxy must vote on a particular resolution.
- 20.5 The proxy holder must vote on a proposed resolution in accordance with a direction, if any.
- 20.6 Proxy forms must be received by the Company at least 48 hours before a meeting at the address (which may be an electronic address) stated in the notice or at the Company's registered address.

- 20.7 A poll requested on a resolution at a General Meeting must be taken in the manner and at the time and place the chairperson of the meeting directs.
- 20.8 The result of a poll requested and taken on a resolution of a General Meeting is a resolution of that meeting.
- 20.9 Each Member entitled to vote at a General Meeting may vote by direct vote (ballot) where such an option is offered by the Board. A direct vote includes a vote delivered to the Company by any means approved by the Board, which may include post or electronic means.
- 20.10 The Board may prescribe By-Laws in relation to direct voting, including specifying the form, method and timing of giving a direct vote at a meeting in order for the vote to be valid.
- 20.11 An objection to the qualification of a Member to vote at a General Meeting:
 - a) must be raised before or at the meeting at which the vote objected to is given or tendered; and
 - b) must be referred to the chairperson of the meeting whose decision on the qualification to vote is final.

21. Cancellation or postponement of a General Meeting

- 21.1 The Board in its discretion may cancel, postpone or change the venue of an upcoming General Meeting, by giving notice of the changes.

D. BOARD OF DIRECTORS

22. Board composition

- 22.1 There will be up to 10 Directors comprising:
 - a) between 6 and 8 Directors elected by the Members (**Elected Directors**); and
 - b) no more than 2 Directors appointed by the Board under clause 23 (**Appointed Directors**).
- 22.2 There must be no more than 2 Directors from any one Corporate Group.
- 22.3 Where the office of a Director becomes vacant, the continuing Directors may continue to act except where the number of Directors is reduced to 3 or lower, in which case the continuing Directors may act only:
 - a) to appoint Directors for the purpose of increasing the number of Directors to 3 or higher;
 - b) to convene a General Meeting; or
 - c) in an emergency, as determined by the remaining Directors.

23. Appointed Directors

- 23.1 The Board may appoint up to 2 individuals to hold office as Appointed Directors upon such terms and conditions as the Board determines.
- 23.2 The term of office of an Appointed Director will be for a period of up to 2 years as determined by the Board. An Appointed Director whose term expires may be re-appointed for subsequent terms at the discretion of the Board.
- 23.3 An Appointed Director will have specific skills, experience, perspectives or capabilities that the Board considers desirable.

24. Term of Elected Directors

- 24.1 The term of office of an Elected Director commences at the conclusion of the Annual General Meeting at which their election is declared or announced and ends at the conclusion of the second following Annual General Meeting. If eligible, a retiring Elected Director may be re-elected.

25. Eligibility of Directors

- 25.1 A person is eligible for election or appointment as a Director if they:
 - a) are over the age of 18 years;
 - b) give the Company their signed consent to act as a Director of the Company;
 - c) are not ineligible to be a Director under law, including the Corporations Act;
 - d) are not an employee of the Company; and
 - e) are not bankrupt and have not made any arrangement or composition with their creditors generally, unless, subject to the Corporations Act, the Board resolves otherwise.

26. Election of Elected Directors

- 26.1 The Board may make By-Laws consistent with the constitution regarding the procedures for the conduct of elections and the nomination process.
- 26.2 Prior to the Annual General Meeting, the Board must:
 - a) determine the number of Elected Directors to be elected by the Members with reference to clause 22.1a); and
 - b) give notice to the Members of the number of vacancies that may be filled and call for nominations of candidates for election as an Elected Director.
- 26.3 Nominations of candidates for election as an Elected Director must be received by the Secretary in the time prescribed in the By-Laws.
- 26.4 A Member may nominate candidates for election as an Elected Director. A nominee must be a Representative or employee of a

Member, or Branch Account who satisfies the nomination criteria as set out in the By-laws.

26.5 The nomination form must:

- a) be in writing in the form determined by the Board from time to time; and
- b) include any required information (such as the candidate's skills and experience) as determined by the Board from time to time.

26.6 At the close of nominations if there are more candidates for election than there are vacant Elected Director positions to be filled, then a ballot will be conducted in accordance with the By-Laws set by the Board.

26.7 If a ballot is to be conducted, the Board will appoint a returning officer who must not be a Director or a candidate.

26.8 If at the close of nominations there are the same number or fewer candidates for election than there are vacant Elected Director positions to be filled, then all eligible candidates will be deemed to have been elected and no ballot will be held. Any resulting vacancies in the position of Elected Directors shall be casual vacancies to which clause 35.1 applies.

26.9 The results of an election will be announced at the Annual General Meeting.

27. No alternate directors

27.1 Directors are not entitled to appoint alternate directors.

28. Chair and Vice Chair

28.1 The Board must appoint a Director as Chair and another Director as Vice Chair.

28.2 Subject to clause 28.3, the Board may determine the period for which a Director is Chair or Vice Chair.

28.3 The maximum continuous period for which a Director may hold office as Chair is 6 consecutive years.

28.4 A person who has held office as Chair for the maximum continuous period is eligible for reappointment after a period of 1 year from the date that the person last held office as Chair.

29. Powers of the Board

29.1 The business of the Company is to be managed by or under the direction of the Board who may exercise all the powers of the Company that are not required by the Corporations Act or by this constitution to be exercised by the Company in General Meeting.

30. Duties of Directors under common law and legislation

30.1 The Directors must comply with their duties as directors under legislation and common law.

- 30.2 Without limiting clause 30.1 the Directors must comply with the following duties:
- a) to exercise their powers and discharge their duties with the degree of care and diligence that a reasonable individual would exercise if they were a Director of the Company;
 - b) to act in good faith in the best interests of the Company and to further the Purpose of the Company;
 - c) not to misuse their position as a Director;
 - d) not to misuse information they gain in their role as a Director and to maintain the confidentiality of information received in their role as a Director;
 - e) to disclose any perceived or actual material conflicts of interest in the manner set out in this constitution;
 - f) to ensure that the financial affairs of the Company are managed responsibly; and
 - g) not to allow the Company to operate while it is insolvent.
- 30.3 The Board may make By-laws or adopt a policy dealing with the disclosure and management of conflicts of interest consistent with the Corporations Act.

31. Delegation of powers

- 31.1 The Board may delegate any of its powers to:
- a) a committee;
 - b) a Director;
 - c) an employee of the Company; or
 - d) any other person,
- and may revoke that delegation.
- 31.2 The delegate must exercise the powers delegated in accordance with any directions, terms and conditions as set by the Board.

32. By-Laws

- 32.1 The Board may from time to time may make, amend, or repeal such By-Laws as it determines are appropriate for the purposes of giving effect to any provision of this constitution or to govern the procedures and activities of the Company. Any such By-Law:
- a) must not be inconsistent with any provision in this constitution; and
 - b) when in force is binding on all Members.

33. Remuneration to Directors

- 33.1 Unless otherwise approved by the Members in General Meeting, Directors will not be entitled to a fee for acting as a Director.
- 33.2 Payments may be made to a Director for:

- a) out-of-pocket expenses incurred by the Director in the performance of any duty as a Director where the amount payable does not exceed an amount previously agreed by the Board; and
- b) any service rendered to the Company by the Director in a professional or technical capacity, other than in the capacity as a Director, where the provision of the service has the prior approval of the Board and is not more than an amount which commercially would be reasonable for the service.

34. Ceasing to be a Director

34.1 In addition to any other way a Director ceases to be a Director under this constitution or the Corporations Act, a Director ceases to be a Director if they:

- a) resign by giving one month's written notice to the Secretary;
- b) are subject to any of the circumstances prescribed by the Corporations Act as resulting in the ending or vacating of the office;
- c) become of unsound mind or a person who is, or whose estate is, liable to be dealt with in any way under the law relating to mental health unless (in the opinion of a majority of Directors) the Director can fully participate in the governance of the Company, despite their mental incapacity;
- d) die;
- e) become bankrupt or make any arrangement or composition with their creditors generally, unless, subject to the Corporations Act, the Board resolves otherwise;
- f) are convicted on indictment of an offence and the Board does not at the next meeting of the Board after that conviction resolve to confirm the Director's appointment to the office of Director;
- g) are absent from three consecutive meetings of the Board, with or without the consent of the Board, unless at the next meeting of the Board, the Board resolves otherwise;
- h) fail to disclose a material personal interest in breach of the law unless at its next meeting the Board resolves otherwise;
- i) are removed as a Director by at least a majority resolution of the Company in General Meeting;
- j) become a paid employee of the Company;
- k) are found guilty by a tribunal, industrial commission, court of competent jurisdiction or other similar authority of engaging in discriminatory conduct or harassment towards employees of the Company or other Members or their employees; or
- l) are an Elected Director and cease to be a Member, a Representative or an employee of a Member, unless the Board resolves otherwise.

35. Casual vacancies on the Board

35.1 If a casual vacancy in the position of a Director occurs, the Board may appoint an eligible individual to fill the vacancy until the end of the predecessor's term.

36. Frequency and mode of Board meetings

36.1 The Board may meet together (including by technological means) for the despatch of business and adjourn and otherwise regulate its meetings as frequently and in the manner it sees fit.

37. Calling a Board meeting by Chair or two Directors

37.1 The Chair or any two or more Directors may at any time request a Board meeting.

37.2 The Secretary, upon the request of the Chair or any two or more Directors, must convene a Board meeting.

38. Notice of a Board meeting

38.1 Reasonable notice must be given to every Director of the place, date and time of every Board meeting.

38.2 Notice of a Board meeting must be given by such means as have been agreed by the Directors.

38.3 Non-receipt of any notice of a Board meeting by a Director does not affect the validity of the convening of the meeting.

39. Chair of a Board meeting

39.1 The Chair is entitled to chair all Board meetings.

39.2 In the absence of the Chair, the Vice Chair is entitled to chair Board meetings.

39.3 In the absence of the Chair and Vice Chair, the Directors at a Board meeting may choose a Director to be the chair of the meeting.

40. Quorum at a Board Meeting

40.1 The quorum for a meeting of the Board shall be the number that is a majority of the Directors currently in office.

40.2 No business may be transacted at a Board meeting unless a quorum of Directors is present during the time the business is dealt with.

41. Decisions of the Board

41.1 A resolution of the Board must be passed by a majority of the votes cast by Directors present and entitled to vote on the resolution.

41.2 The Board may pass a resolution, without a meeting of the Board being held if the proposed resolution is sent to the Directors and a majority of Directors, assent to the resolution in writing.

- 41.3 A circular resolution is taken to have been passed on the date the resolution was assented to by the last Director who constituted the majority of Directors in favour.

42. Validity of acts of Directors

- 42.1 All acts done at any meeting of the Board or by any individual acting as a Director shall be valid even if it is later discovered that there was a defect in the appointment of an individual as a Director or the individual not being entitled to vote.

E. ADMINISTRATIVE MATTERS

43. Secretary

- 43.1 The Board must appoint at least one Secretary who ordinarily resides in Australia.
- 43.2 The Secretary holds office on such terms and conditions as to remuneration and otherwise as the Board determines.
- 43.3 The Board may remove any Secretary so appointed, subject to the terms of any contract and the law.
- 43.4 The Secretary has such powers and duties as specified in this constitution, as required by the Corporations Act, and as determined by the Board.

44. Minutes

- 44.1 The Company must keep records of:
- a) proceedings and resolutions of General Meetings;
 - b) proceedings and resolutions of Board meetings;
 - c) proceedings of committee meetings;
 - d) resolutions passed by Members without a meeting; and
 - e) resolutions passed by the Board without a meeting
- 44.2 The Company must ensure that the minutes of a meeting are signed within a reasonable time after the meeting (usually within 1 month) by the chairperson of the meeting at which the proceedings were held, or by the chairperson of the next succeeding meeting.

45. Inspection of records

- 45.1 The Board must ensure that the minute books for General Meetings of the Company and for resolutions of Members passed without meetings, are open (available) for inspection by Members in accordance with the Corporations Act.
- 45.2 A Member other than a Director does not have the right to inspect any books, records or documents of the Company except as provided by law or authorised by the Board.

- 45.3 A former Director has the right to inspect relevant books, records or documents of the Company specifically relevant to the time period the former Director was a Director.

46. Time for service of notices

- 46.1 Where a notice is sent by post, service of the notice is taken to be effected three (3) days after it is posted.
- 46.2 Where a notice is sent by email or other electronic means, service of the notice is taken to be effected on the day it is sent or on the day the Member is advised via the electronic contact address that the notice is accessible electronically.

47. Method for service of notices

- 47.1 A notice may be given by the Company to a Member:
- a) by serving it on the Member personally;
 - b) by sending it by post to the Member's address as shown in the register of Members;
 - c) by sending it to an electronic contact address (such as an email address) that the Member has supplied to the Company or using which the Member has contacted the Company in the past; or
 - d) by making a copy of it accessible electronically (for example on a website of, or related to, the Company, or using a hyperlink or other technology) and advising the Member of its availability via the electronic contact address.

48. Accounts and audit

- 48.1 The Board must cause:
- a) the Company to keep the accounting records and prepare the financial statements required by the Corporations Act; and
 - b) the accounts and any other documents required by the Corporations Act to be sent to Members and laid before General Meetings as required by the Corporations Act.
- 48.2 The Board must cause:
- a) the accounts of the Company to be audited as required by the Corporations Act; and
 - b) the auditor's report to be sent to Members and laid before General Meetings of the Company as required by the Corporations Act.

49. Indemnity and insurance

- 49.1 The Company indemnifies each officer of the Company out of the assets of the Company, to the relevant extent, against all losses and liabilities (including costs, expenses and charges) incurred by that person as an officer of the Company.
- 49.2 In this clause, 'officer' means a Director or Secretary and includes a Director or Secretary after they have ceased to hold that office.

- 49.3 In this clause, 'to the relevant extent' means:
- a) to the extent that the Company is not precluded by law (including the Corporations Act) from doing so, and
 - b) for the amount that the officer is not otherwise entitled to be indemnified and is not actually indemnified by another person (including an insurer under an insurance policy).
- 49.4 The indemnity is a continuing obligation and is enforceable by an officer even though that person is no longer an officer of the Company:
- 49.5 To the extent permitted by law the Company may:
- a) purchase and maintain insurance; or
 - b) pay or agree to pay a premium for insurance,
- against any liability incurred by the officer as an officer including, but not limited to, a liability for negligence or for reasonable costs and expenses incurred in defending proceedings, whether civil or criminal.

50. Changes to the constitution

- 50.1 The Company may modify or repeal its constitution, or a provision of its constitution, by Special Resolution.

51. Winding Up

- 51.1 In the event of the winding up or dissolution of the Company, any remaining assets, after deduction of liabilities, must be transferred as determined by the Members to a fund, authority or institution whose constitution:
- a) requires it to have objects or purposes similar to those of the Company; and
 - b) prohibits it from making distributions to its members to at least the same extent as set out in this constitution.
- 51.2 The determination as to the fund, authority or institution to be given the surplus assets must be made by a Special Resolution of Members at or before the time of winding up. If the Members do not make this determination, the Company may apply to a court of law to make this decision.

52. Initial Members and Directors

- 52.1 The initial Members of the Company will be those members listed on the application to ASIC to register the Company.
- 52.2 The initial Board will be those Directors listed on the application to ASIC to register the Company. All initial Directors will be designated as Elected Directors.
- 52.3 The initial Directors will hold office until the conclusion of the Company's second Annual General Meeting. In conjunction with that Annual General Meeting, elections will be conducted in

accordance with clause 26. If eligible, an initial Director may be re-elected.

- 52.4 The Board may appoint up to 2 Appointed Directors at any time after registration of the Company.

END OF CONSTITUTION